

UNIVERSITY OF PORT HARCOURT
FACULTY OF LAW

CRIMINAL LAW2

SEXUAL ASSAULTS

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Introduction

In this module, we shall examine some sexual assaults known to Nigerian law. Specifically, we shall examine the offences of Defilement, Indecent Assault, Incest and Rape.

DEFILEMENT

The offence of defilement is also known in some climes as statutory rape. It is provided for in sections 218 and 221 of the Criminal Code. Section 218cc deals with defilement of a female child below 13 years; section 221cc deals with the defilement of a female child above 13 years but below 16 years. It also deals with the defilement of girls who are imbeciles or idiots.

It is noteworthy that under section 39 of the penal code, a girl below the age of 14 years is incapable of giving a valid consent. Thus, sexual intercourse with a girl below 14 years whether she consents or not will amount to rape in the jurisdiction covered by the penal code. See section 282 of the penal code.

For the avoidance of doubt, section 218 of the Criminal Code provides as follows:

"Any person who has unlawful carnal knowledge of a girl under the age of thirteen years is guilty of a felony and is liable to imprisonment for life with or without caning.

Any person who attempts to have unlawful carnal knowledge of a girl under the age of thirteen years is guilty of a felony and is liable to imprisonment for fourteen years with or without caning.

A prosecution of either of the offences defined in this section shall begin within two months after the offence.

A person cannot be convicted of either of the offences defined in this section upon the uncorroborated testimony of one witness".

Note also that section 219 of the Criminal Code also makes it an offence for a person who owns a house, premises or dwelling place to permit or allow the defilement of a girl in such a place.

The offence of defilement is a serious felony where the law tries to protect girls and female children from sexual predators. A graphic picture of this role was painted by the Supreme Court in the case of EZIGBO v. STATE (2012) 16 NWLR (Pt. 1326) 318 at 328 ratio 5:

The facts revealed in this appeal are sordid and can lead to a conclusion a man can turn into a barbaric animal. when the appellant was alleged to have committed the offence of rape, he was 32 years old. His two young victims, namely, Ogechi Kelechi (8 years) and Chioma Kelechi (6 years) were by all standards underaged. What did the appellant want to get out of these underaged girls? Perhaps the appellant forgot that by nature, children generally are like animals and they follow anyone who offers them food and that is why the appellant induced the young girls with ice cream and Zobo drink in order to translate his hidden criminal intention to reality damning all consequences. Honestly, for an adult man like the appellant to have carnal knowledge of the underaged girls such as the appellant's victims is very callous and animalistic. It is against the laws of all human beings and it is against God and the State. Such small underaged girls and indeed all females of whatever age, need to be protected against callous acts of criminality of people of the appellant's class. I wish the punishment meted to the appellant was heavier so as to serve as deterrent".

Ingredients of the offence of Defilement ✓

The following are the material ingredients of the offence of defilement:

- (1) You must establish that the accused person had or attempted to have carnal knowledge of the victim.
- (2) You must show that the carnal knowledge so had was unlawful.
- (3) You must show that the victim of the act of the accused is a girl below the age of 13 or above 13 but below 16 years.

Note that carnal knowledge represents the actus reus of the offence of defilement, and such carnal knowledge must be shown to be unlawful. Note also that by section 6 of the Criminal Code, carnal knowledge is defined to be complete upon penetration. The same section 6cc defines unlawful carnal knowledge to mean the carnal connection which takes place otherwise as between husband and wife. See the case of UGANDA v. ZAWEDDE where the trial Judge defined unlawful carnal knowledge as follows: "I am of the

view that once the ingredient that the complainant was a girl of below 18 years at the time of the offence and the accused had sexual intercourse with her at the material time has been properly proved, it follows that the sexual intercourse was unlawful".

It is our respectful view that section 31 of the Child's Rights Act 2003 seems to have made the provisions of section 6 of the Criminal Code of doubtful validity when it provides expressly that no person shall have sexual intercourse with a child. The same Act provides that a child is a person who is 18 years and below. In other words, going by the Child's Rights Act, any sexual connection or intercourse with a child is unlawful.

Note that the consent of an underaged girl is not a defence to a charge of defilement. It is also not a defence that the accused reasonably believed that the girl with whom he had sexual intercourse was not below 13 years. In other words, the law has made this offence a strict liability offence. The punishment for the offence of defilement is imprisonment for life, while that for attempted defilement is 14 years imprisonment.

Problems Facing the Offence of Defilement in Nigeria

The offence of defilement in Nigeria is beset with a myriad of problems or challenges which have hindered its effective prosecution and enforcement. The offence is equally challenged by the prevailing incidence of child marriage, especially in the Northern part of Nigeria. Some of these problem facing the offence of defilement are as follows:-

- 1) **Limitation of Time:** Under Section 218 of the Criminal Code, the prosecution of a person for the offence of defilement shall be done within 2 months after the commission of the offence. The meaning of the above is that any such charged preferred after the stipulated two months period becomes statute bared and becomes invalid and incompetent. The position of the law on the status of a process filed outside the time stipulated by statute is exemplified in the case of *GODBLESS EZENWATA NIGERIA LTD v. SUNDAY ODIOKU & ORS* (2015) LPELR-24438(CA) where the court held as follows:- *"A action commenced after the expiration of the period, within which the action must be brought, stipulated in a statute is not maintainable and the court will have no jurisdiction to entertain such case"*.

See also *MAYAKI v. STATE* (1981) 1 NCR 25. In this case, the accused was charged with defilement before the Ogun State High Court and the offence was alleged to have been committed in February, 1977, while the prosecution began in December, 1978. It was held that because the

charge was not brought within the 2 months of the commission of the offence, the same was invalid and incompetent.

See further ELIAS v. ONUGBU (unreported) where a former Judge of the High Court of Rivers State who is now a Justice of the Court of Appeal, Justice B.A. GEORGEWILL, JCA stated as follows: *"On the whole, therefore and based on my findings above, reasons and the applicable principles of law, I am of the humble but firm view and I so hold that the information laid against the accused/applicant in this case is incompetent having been commenced on 11/2/2011 seven months after the expiration of the two months limitation period for the commencement of prosecution for the offence of defilement as prescribed in section 218 of the Criminal Code laws of Rivers State 1999. In the result, charge No. PHC/2340CR/2011 is incompetent, the same being statute barred and it is consequentially hereby struck out and accused discharged"*.

It is heart-warming that some States in the country have effected an amendment of section 218 of their criminal codes by removing the limitation of time clog. An example of such a State is Delta state and the issue came up in the case of ADENIKE v. STATE (2015) NWLR (Pt. 1458) 237. In this case, the appellant who was convicted of defilement, sought to nullify his conviction at the Supreme Court on the ground that he was charged to court after the two months limitation period. The Supreme Court rejected this argument and affirmed his conviction and sentence on the ground that the criminal code law in force in Delta State has already been amended and no longer carries any limitation of time clog.

- 2) **Requirement for Corroboration:** Section 218 of the Criminal Code expressly insists that a person cannot be convicted for the offence of defilement on the uncorroborated testimony of one witness. What this in effect means is that before a person can be convicted for the offence of defilement, the evidence of the prosecutrix must be corroborated by another independent testimony of another witness. This requirement of corroboration is mandatory and where the same is not produced, the accused is entitled to be discharged, no matter how strong and convincing the testimony of the prosecutrix may be. See IKO v. STATE (2001) 14 NWLR (Pt. 732) 221. In STATE v. OLUMUYIWA (1982) NCLR Vol. 2, 297, the accused person was charged for having sexual intercourse with the complainant who is a school girl of 13 years old. It was held by the court that the evidence of the school girl alone was not enough since it was not corroborated by any other testimony. In fact, in ONWUMERE v. STATE (1991) 4 NWLR (Pt. 186) 428 where even the accused person volunteered a confessional statement, the court of appeal still insisted that in so far as

the testimony of the prosecutrix was not corroborated by any other independent evidence other than the confession of the accused, the charge was not made out and the accused was discharged.

We are at a loss over the relevance and utility of this requirement and we humbly believe that it has become a handy obstruction to the cause of justice in the prosecution of the offence of defilement in Nigeria.

- 3) **The Problem of Rampant Early or Child Marriage:** The most ubiquitous challenge facing the offence of defilement in Nigeria is the prevailing incidence of early or child marriage in the country. This practice is noticeable across the country, although it is more dominant in the northern part. This practice is also associated with all strata of people in the society, both the rich and the poor. In fact, most offenders of defilement pretend to marry their victims and use that ploy to evade being prosecuted and thereafter abandon the victim.

Article 16 of the Universal Declaration of Human Rights (UDHR) states that persons must be of full age when getting married and marriage should be entered into freely and with full consent. The Convention on the Rights of the Child (CRC) which was adopted by the United Nations in November, 1989 and was ratified by Nigeria in March, 1991 in article 1 states that a child is every human being below the age of 18 years. This again was followed by the African Charter on the Rights and Welfare of the child of which Nigeria is a signatory, which again states that child marriage and the betrothal of girls and boys shall be prohibited and effective action should be taken, including legislation, to ensure that the minimum age of marriage is maintained at 18 years. See also the African Union Charter on the rights and welfare of the child where a child was defined in article 2 thereof as a person below 18 years. Article 21 expressly abrogates child marriage.

In 2003, Nigeria enacted the Child's Rights Act and in section 21 of this law, child marriage was prohibited and declared as null and void. The said section defines a child as a person below 18 years. Interestingly, section 23 of the Child's Rights Act makes it a criminal offence for any person to participate, take part or conduct a child marriage. Note also that in section 29(4) of the 1999 Constitution (as amended), 'full age' was defined to mean 18 years and above. Section 17(3)(f) of the same Constitution provides that children, young persons and the aged shall be protected against any exploitation whatsoever and against moral and material neglect.

It is a matter of great regret that in the face of these avalanche of statutory provisions, the practice of child marriage has persisted and continued to

increase unabated in Nigeria. Note that the prevalence of this practice is anchored on section 29(4) of the 1999 Constitution (as amended) which on one hand defines full age to mean a person of 18 years and above, and on the other hand, maintains and provides that any woman who is married is deemed to be of full age. In other words, by this section, a 10 year old child who is married is constitutionally deemed to be of full age. Proponents of early or child marriage have brandished and relied upon this provision to promote the continuance of the said act. It is humbly suggested that a proactive way of changing the narrative and nipping the prevalence of child marriage in the bud in the country is to effect an amendment of section 29(4) of the Constitution by expunging paragraph (b) thereof. Another move will also be to amend item 61, Part 1 of the second schedule to the Constitution which excludes customary and Islamic marriage from the legislative purview of the National Assembly. The Northern States have always used this reason to avoid the application of the Child's Rights Act 2003 to Islamic child marriages conducted within their borders.

Practice Question

Discuss the offence of defilement in Nigeria and the conundrum of prevailing child marriage in the country. ?

INDECENT ASSAULT

An indecent assault can be committed by any person of either sex. The relationship of the accused person to the victim is no barrier or defence to the commission of the offence of indecent assault. See KOWALSKI'S CASE (1988) 86 Criminal App. Rep. 339. In this case, the defendant demanded to make love to his wife, but the wife declined on the ground that she was tired and exhausted. For this reason, the defendant brought out a knife and forced his wife to give him a blow job and after that, he also has sexual intercourse with her. Upon being charged with rape and indecent assault, it was held that because she was his wife, the offence of rape will not stand, but the defendant was found guilty of indecent assault for forcing his wife to perform the blow job.

Under the Criminal Code, the offence of indecent assault is provided for in section 216, 217, 222, 353 and 360 of the Criminal Code.

Section 216 cc provides thus:

Any person who unlawfully and indecently deals with a boy under the age of fourteen years is guilty of a felony and is liable to imprisonment for seven years.

Section 217 cc states that:

Any male person who, whether in public or private, commits any act of gross indecency with another male person, or procures another male person to commit any act of gross indecency with him, or attempts to procure the commission of any other such act by any male person with himself or with another male person, whether in public or private, is guilty of a felony and is liable to imprisonment for three years. The offender cannot be arrested without warrant.

Section 222 cc provides inter-alia:

A person who unlawfully and indecently deals with a girl under the age of sixteen years is guilty of a misdemeanor and is liable to imprisonment for two years, with or without caning. If the girl is under the age of thirteen years, he is guilty of a felony and is liable to imprisonment for three years, with or without caning. It is a defence to a charge of the offence defined in this section to prove that the accused person believed on reasonable grounds that the girl was of or above the age of sixteen years. The term "deals with" include doing any act which, if done without consent would constitute an assault as hereinafter defined.

Section 353 cc provides thus:

Any person who unlawfully and indecently assaults any male person is guilty of a felony and is liable to imprisonment for three years.

The offender cannot be arrested without a warrant.

Section 360 cc states as follows:

Any person who unlawfully and indecently assaults a woman or a girl is guilty of a misdemeanor and is liable to imprisonment for two years.

Ingredients of Indecent Assault

The following are the material ingredients for the establishment of the offence of indecent assault:

- (1) **There must be shown to be an assault or battery.** This is the actus reus of the offence. The assault can be committed by words alone if they cause the necessary apprehension. Thus, in *R v. CONSTANZA* (1997) 2 CAR 492 it was held that indecent assault could be committed over the telephone. The assault could also be committed by having physical contact to the body of the victim such as by touching her breast or touching her buttocks.
- (2) **You must show that the act of assault committed was unlawful and without consent.** The assault or touching on the victim must not be justified, excused, mistaken or accidental. Where the accused accidentally touched the victim, there would be no assault. See *R v. GEORGE*. In the

same vein, there cannot be assault where the victim gave valid and real consent. But note that consent procured through any of the known vitiating elements will not suffice. It will be unlawful for an accused to indecently assault any girl below the age of 16 years or any boy below the age of 14 years as they have been held to be incapable of giving consent. See *R v. MCCORMACK* (1969) 2 QB 442. Note that a person who is deficient either in age or intellect (as in an idiot or imbecile) is incapable of giving a valid consent and it would be unlawful to indecently assault any of them.

- (3) It must be shown that the assault launched is indecent. The requirement here is that the assault under this offence must be indecent and considered to be indecent by right-minded persons. This is the objective test which means that it must be considered an offence to contemporary standards of modesty and privacy. Touching of the genitals of a person unlawfully or touching a woman's breast would be considered indecent. See *R v. COURT*. What the courts usually do is to consider the entire circumstances of a case to determine whether the act done amounts to an indecent act. See *BEAL v. KELLY* (1951) 2 ALL E.R. 763. In this case, the accused exposed himself to a boy of 14 years and invited the boy to handle him, and when the boy refused, the accused grabbed his hand and pulled the boy towards himself. Upon being charged, the court held that from the circumstances of the matter, the pulling of the boy's hand and dragging him towards himself constituted indecent assault.

INCEST

Incest means to have sexual inter-course with persons who are related by blood no matter how remote the relationship will be. This means relationship with one's in-laws will not amount to incest. Most cultures and even religion prohibit incest. The criminal law frowns at incest but it is curious that the criminal code did not criminalize incest. In Southern Nigeria, incest is not prohibited by statute.

In the penal code, incest is an offence in the whole of Northern Nigeria. Note that in the old Eastern region of Nigeria, the then criminal code of the region (1954) made incest an offence, but this was not retained in subsequent versions of the code including the codes being presently used by all the States in the old Eastern region of Nigeria. Under the penal code, the offence is seen in S.390 of the P.C. and provides as follows "whoever being a man has sexual intercourse with a woman, who is or who he knows or has reasons to believe to be his daughter, granddaughter, mother or any other of his female ascendant/descendant; his sisters, or daughter of his brother or sister or his paternal/maternal aunt or whoever being a woman voluntarily permits a man who is and who she knows or has reason to believe to be her son, grandson, father or any other of her male ascendants or descendants, her brother or the son of her brother or the sister or

her paternal/maternal uncle to have sexual intercourse with her shall be punished with imprisonment for a term of 10 years and liable to a fine".

This definition under the penal code is same as that under the common law. The only difference is that the common law includes uncles, nephews and nieces.

Note that under our customs and cultures in Africa, the notion of incest is wider in scope than that in the penal code. It extends even to the relations of the man's wife, or children had in their previous marriages and between such children *interse*. It should be noted that because our customary laws are unwritten, any crime contained in them including incest cannot be enforced by virtue of section 36(12) of the 1999 constitution (as amended).

Ingredients

- (1) **You must show that there was sexual intercourse.** This is the *actus reus* of the offence. For it to be established, you must show that there was penetration, therefore such collateral acts like indecent exposure, fondling, finger insertion, oral sex or sodomy are not incest. The sexual intercourse must be shown between a man and woman.
- (2) **You must show that parties are related by blood.** In Uganda, a man was convicted for incest with his daughter who became pregnant. The court held that the relationship between father and daughter made it incestuous. This is the case of *BASSRUIGAHARA v. UGANDA* (unreported).
- (3) **The accused must be shown to have knowledge of the relationship.** Note that by S.50 of the penal code, a child under 7 years of age or above 7 but less than 12 is deemed not to have attained sufficient authority and understanding to judge the nature and consequence of his act and such a child cannot be guilty of incest. In the same vein, by virtue of S.18 of the Child's Rights Act, a girl under 18 is regarded as incapable of consenting to a sexual intercourse.

RAPE

The offence of Rape is found in Section 337 of the criminal code & Section 282 of the penal code. Under Section 357 of the criminal code, any person who has unlawful carnal knowledge of a woman or girl without her consent or with her consent if it is obtained by force or by fear of harm or by means of false and fraudulent representation as to the nature of the act done or in the case of a married woman, by personating her husband, is guilty of an offence called Rape. By Section 282 of penal code, a man is said to commit rape who has sexual intercourse with a woman in any of the following circumstances:

- a. Against her will
- b. Without her consent
- c. With her consent when the consent is obtained by putting her in fear of death or hurt.
- d. With her consent when the man knows that he is not her husband and that her consent is given because she believe that he is any other man to whom she is or believe herself to be lawfully married.
- e. Without her consent if she is under 14years of age or she is of unsound mind.

By subsection 2 of S. 282 of Penal code, sexual intercourse by a man with his own wife is not rape if she has attained puberty.

Capacity for the offence of Rape

By Section 282 of the penal code, a girl child under 14 years is deemed incapable of consenting to sexual inter-course.

By the same token Section 30 of Criminal code provides that a male person under the age 12 years is presumed to be incapable of having carnal knowledge. Note that presumptions of Law are irrebutable and evidence cannot be called to show that the child was truly capable of having canal knowledge.

Note that a husband is incapable of committing Rape against his wife, although recent legal opinion expressed by Feminist Crusaders insist that a husband should be made liable for Rape whenever he does it without the consent of his wife. This is called spousal rape and it is not yet part of our law in Nigeria. But note that spousal rape is an offence in England. In Scotland the husband can now be guilty of spousal Rape. Thus, in H.M ADVOCATE v. DUFFY it was held that if a man could be found guilty of violence against his wife, it will be unreasonable not to find him guilty of rape of his wife if the necessary fact were duly proved.

Note further that a woman cannot be held liable for the offence of Rape since the law presumes that she is in capable of effecting penetration but she can be convicted for aiding and abetting the commission of rape. See R v ROM a wife held down a house maid while the husband forceful had sexual intercourse with the house maid; the husband was convicted for rape while the wife was convicted for aiding.

Under Criminal code, the maximum punishment for the offence of rape is a term of imprisonment for life, but under the penal code, the punishment is imprisonment for a term which may not exceed 14 years in addition to a fine.

Ingredients/Elements of the Offence of Rape

- (1) There must have been a canal knowledge of the lady involved. This is the physical element of the offence of Rape. The term canal knowledge

means canal connection in the offence of rape and it is complete upon penetration of the female organ by the male organ.

- (2) It must be shown that there was penetration. There cannot be rape without penetration. Penetration no matter how slight is sufficient to ground a charge for rape. Penetration takes place when the male organ reaches the *labia minora* which is outside the female vagina. The law recognizes only the male penis as the object that can be used to commit rape. See *AHMED v. NIGERIAN ARMY* (2011) 1NWLR (Pt. 1227) 89. See also *OGUNBAYO v. STATE* (2007) 8NWLR (Pt. 1035) 157.

This position is distinguishable from what is obtained in England where penetration could be vaginal or anal. See Section 2 of Sexual Offence Act of UK 1956; Section 142 Criminal Justice and Public Order Act 1994.

For rape to be committed, it is not necessary to prove that the female hymen was ruptured. See the Uganda case of *MUCASA EVENTSTO v. UGANDA* (C/A 53/99) where the Court of Appeal held that the hymen need not be ruptured for there to be rape, but that penetration no matter how slight suffices.

Note that the emission of semen that should accompany penetration is not a requirement for proof of rape. See *PHILIPO v. UGANDA* (unreported). Ejaculation is also not a requirement that should accompany penetration before rape can be said to be established. Although rape is said to be complete upon penetration, it is a continuing act which will only end with withdrawal.

- (3) **Unlawful carnal knowledge:-** It must be shown that the sexual intercourse was unlawful. Unlawful is one done outside the domain of marriage. This means that it must be shown that carnal knowledge or carnal connection took place otherwise than between husband and wife. In *R v. CHAPMAN* (1959) 1QB 100 the court held that the term unlawful carnal knowledge means extra-marital sex or sex had outside marriage.
- (4) **Lack of consent:-** Consent is an important aspect of this offence as its existence negatives the existence of rape. It must always be shown that there was lack of consent by the woman who was a victim to the sexual inter-course. In otherwise the prosecution must always prove that the accused had carnal knowledge with the female without her consent.

Note that the consent to sexual inter-course must always be real and consent obtained by threat, trick, fraud, false representation or intimidation are not consent in the eyes of the law.

Consent is not real if it is obtained by force, threat, intimidation, deceit, trick or even by false representation.

The fact that a victim did not scream or attempt to scream cannot be taken to imply the giving of consent. Note that to have sexual inter-course with a

female who is drunk or asleep or unconscious or who otherwise is unable to give or withhold consent is clearly an act of rape. R. v. FLETCHER LORD CAMPBELL (1859) 8 Cox CC 131 stated that "*it would be monstrous to say that a man would not be guilty of rape if he had a connection with a drinking woman who when returning from market lay down and fell asleep at the roadside while she is in a state of insensibility or incapable of giving consent*".

Note also that consent given under a mistake as to the nature of the act or as to the identity of the person is not a real consent. It is rape to have sexual inter-course with a married woman by impersonating to be her husband. See generally POPOOLA v. STATE (2013) 17 NWLR (Pt 1321-1322). In this case, the Supreme Court held that rape is the unlawful carnal knowledge of a girl or woman without the consent by force, fear or fraud and it is an essential ingredient of the offence that the inter-course must be without the woman's consent. In other words, a man would be said to have committed rape if he has unlawful inter-course with a woman who did not consent to the inter-course and he knows that she has not consented.

Note that where consent is otherwise obtained by force, threat or intimidation of any kind or by fear of harm or by means of fraudulent representation as to the nature of act, the offence would be said to have been committed. See AKPAN v. STATE (2014) LPELR-22740 (CA) also in RABIU v. STATE (2005) 7NWLR (Pt 925) 491.

Finally, there is a distinction between consent and submission to sexual inter-course. While consent is synonymous to approval and co-operation and is a positive form of expressing *consensus ad idem*, submission on the other hand is a consent that is induced and not given naturally. According to the text writers Smith and Hogan, it is doubtful if submission can encompass the offence of rape as what the law requires is consent and not mere submission.

In the words of Professor Owoade, there is a big difference in criminal law between consent and submission and while consent may defeat a charge of rape, submission cannot produce such an effect.

In UK, the law of consent has been reformed. Unlike in Nigeria where an initial consent can justify and sustain every act done in pursuance of an act of sexual inter-course, the English Supreme Court has now ruled that consent under their law can now become compartmentalized according to the various stages that the parties in a sexual connection may move into. In other words, there could be consent to kiss; which include consent to caress; consent to penetrate; consent to ejaculate and consent to ejaculate no more.